Fort Bend County District Court

Cause No. 2024-CV-0015

Tanya Henson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	May 3, 2024
Plaintiff's counsel:	James Cooke, Santiago & Romero Law Group

PARTIES

Plaintiff Tanya Henson is an individual residing in Texas who was the driver and sole occupant of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which this claim is brought.

FACTS

On May 18, 2023, Plaintiff was driving on a multi-lane public roadway in League City, Texas. Plaintiff signaled and began moving into the adjacent lane when a vehicle operated by a driver insured under Defendant's policy moved into the same space without signaling or checking whether the lane was clear. The vehicles sideswiped one another, and the focre of the contact pushed Plaintiff's car against the lane divider. Plaintiff stopped at the roadside, exchanged information with the other driver, and reported the collision to Defendant. Plaintiff has since submitted claim documentation and requested payment under the appliacble coverage. Defendant has not offered a payment that reflects the injuries Plaintiff sustained.

NEGLIGENCE

The insured driver owed a duty to other motorists to exercise ordinary care when changing lanes, including signaling intent, maintaining a proper lookout, and confirming that the movement could be made safely. The insured driver breached that duty by changing lanes into an occupied lane without adequate precaution, and that breach was a proximate cause of the collision and of Plaintiff's injuries. Defendant, as the insurer responsible for the insured driver's liability, is answerable for the resulting harm to the extent provided by the policy and Texas law.

DAMAGES

As a direct result of the collision, Plaintiff suffered a back strain that caused pain, stiffness, and limited movement. Plaintiff has incurred medical expenses for examination and treatment, has lost time from work and daily activities, and continues to experience discomfort. Plaintiff seeks recovery of economic and non-economic damages in the amount of $81,000.00, together with pre-judgment and post-judgment interest, court costs, and such other relief as the Court deems just.